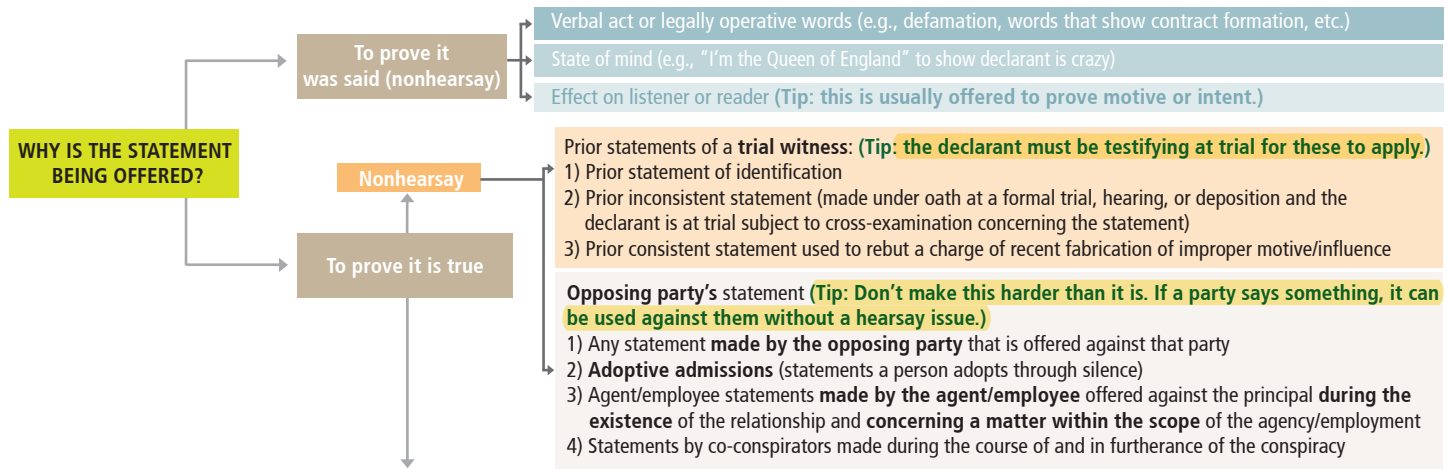


HEARSAY CHART



HEARSAY EXCEPTIONS

Declarant must be unavailable (i.e., invokes a privilege, is absent from the jurisdiction, is ill or dead, lacks memory, or refuses to testify)

1. **Forfeiture by wrongdoing** (witness tampering): a party engages in wrongdoing for the purpose of making a witness unavailable for trial.
2. **Former testimony**: declarant is unavailable and had given testimony at a former proceeding or deposition, and it is admitted against a party or someone in privity who had the motive and opportunity to develop the statement.
3. **Statement against interest**: declarant is unavailable and made a statement he knew was against his interest at the time the statement was made.
4. **Dying declaration**: Declarant is unavailable, the statement was made while he believed death was impending, it concerns the cause or circumstances of death, and it is used in a homicide or civil case. **Tip: memorize these elements!**
5. **Statement of personal or family history** (e.g., birthdate and marriage date)

Is it a CRIMINAL CASE? If so, if the statement is testimonial, the declarant is unavailable, and the defendant had no opportunity to cross-examine the declarant, the statement will generally not be admitted (pursuant to the **Sixth Amendment Confrontation Clause**).

Declarant may be available or unavailable

1. **Present sense impression**: declarant describes or explains event as it is happening or immediately thereafter.
2. **Excited utterance**: there is a startling event, the declarant makes a statement while under the stress of excitement, and the statement relates to the event.
3. **Then-existing mental, emotional, or physical condition**: declarant states his then-existing feelings, physical conditions, or intent.
4. **Statement for medical treatment or diagnosis**: declarant makes a statement about past or present symptoms or the cause(s) to get diagnosed or treated.
5. **Recorded recollection**: a witness has insufficient recollection of the event, but he had personal knowledge of the event at a former time, made or adopted a statement while the event was fresh in his memory, and can vouch for the accuracy of the statement when made or adopted.
6. **Business records**: a record made in the regular course of business at or about the time the event occurred that contains information observed by employees of the business (or an independent hearsay exception exists).
7. **Public records** (made by an agency, but not police reports in criminal cases)
8. **Learned treatises** (read into evidence if an expert is on the stand)
9. **"Catchall" exception** (for trustworthy statements)
10. **Others** (reputation about character, familial relations, etc.)

PRESENTATION OF EVIDENCE

INTRODUCTION OF EVIDENCE

- Refreshing recollection**: if a witness's memory fails him, he may be shown a document or record to jog his memory.
- Competency of witnesses**: every witness is generally presumed to be competent regardless of religious beliefs, bias, etc.
- Judicial notice**: the court may **judicially notice** a fact that is not subject to reasonable dispute because it is **generally known** within the jurisdiction or it can be **accurately and readily determined** from sources whose accuracy cannot be questioned.
- Roles of judge and jury**: The judge decides if evidence is admissible. The jury decides issues of authentication and credibility.
- Limited admissibility**: Sometimes evidence is admissible for one purpose and not another. In such a case, a court may give a limiting instruction to the jury.

PRESUMPTIONS

A "**presumption**" means that a certain fact is assumed to be true unless the other side provides evidence to the contrary. In a civil case, a presumption can shift the burden of proof to the party against whom the presumption is directed. But the burden of persuasion is not affected and it remains on the party who had it originally.

MODE AND ORDER

Scope of examination: Cross-examination (i.e., the questioning of a witness by an opponent) should only cover matters within the scope of **direct examination** and matters affecting credibility. **Leading questions** (i.e., those that suggest an answer, like "isn't it true that...") are permitted on cross-examination. They are only allowed on direct examination (a) to develop preliminary matters (e.g., name and address), (b) for young or forgetful witnesses, or (c) for hostile witnesses or the adverse party. The court exercises reasonable control over the mode and order of questioning witnesses.

RELEVANCY AND WRITINGS, RECORDINGS, AND PHOTOGRAPHS

- **Relevant evidence** is admissible but may be excluded if the probative value is *substantially outweighed* by a danger of unfair prejudice, confusing the issues, misleading the jury, undue delay, wasting time, or needlessly presenting cumulative evidence. **Real, demonstrative, and experimental evidence are permissible in the judge's discretion.**
- An **original writing, recording, or photograph** is generally required, but a **duplicate** is admissible to the same extent as an original unless it is unfair to admit it or there is a genuine question about authenticity.
- **The best-evidence rule**: One only needs to present documentary evidence when one wants to prove the contents of a writing. This means that the writing is (1) a **legally operative document** (e.g., a will, contract, etc.), or (2) the witness learned about the event **solely from the writing or record** and has no independent knowledge of the event. **Tip: this is often the wrong answer choice on the MBE.**
- **Summaries**: A party may use a summary, chart, or calculation if records are voluminous. However, the proponent must allow the other parties to examine or copy the originals or duplicates and the court may order them to be produced.
- **Completeness rule**: When a party introduces part of a writing or transaction, the other party can ask that the rest of it be introduced as well if, in fairness, the rest ought to be considered contemporaneously with it. By introducing the writing or transaction, the party initially offering the evidence has waived any objections based on hearsay, competency, etc.

IMPEACHMENT

	WHAT IS IT?	IS EXTRINSIC EVIDENCE PERMITTED? (E.G., IS OUTSIDE EVIDENCE PERMITTED TO PROVE THAT THE STATEMENT WAS MADE OR THAT THE EVENT OCCURRED?)	IS CONFRONTATION (ASKING THE WITNESS ABOUT IT) PERMITTED OR REQUIRED?
PRIOR INCONSISTENT STATEMENTS	If a party makes a prior statement that is inconsistent with her testimony at trial, it may be used for impeachment. Tip: it may also be used as “substantive evidence” (i.e., the truth of the matter asserted) if it falls within a hearsay exception or exclusion (e.g., prior inconsistent statement or an opposing party’s statement).	Extrinsic evidence may be used only if the witness is given an opportunity to explain or deny the statement at some point. This does not apply if the witness is the opposing party, not in court at all, or if the interests of justice require.	Permitted
BIAS	If a witness is a family member, friend, enemy of a party, paid by the party, granted immunity, or if other circumstances show bias, then that can be used to suggest the witness has motive to lie.	Extrinsic evidence may be used only if the witness is asked about the facts that suggest bias and the witness denies those facts.	Required
CONVICTION OF A CRIME	There are two categories of convictions that are allowed into evidence under the federal rules: (1) felony or misdemeanor convictions where the prosecution is required to prove an act of dishonesty or false statement as part of the crime—these are automatically admitted, and (2) felony convictions that meet a balancing test that weighs the probative value and prejudice.	Extrinsic evidence (the conviction) is permitted. Note: if more than 10 years have passed since the witness’s conviction or release from confinement for it, whichever is later, evidence of the conviction is generally not admissible.	Permitted
SPECIFIC INSTANCES OF MISCONDUCT	If a witness engaged in a “bad act” that is probative of truthfulness (e.g., lying and cheating) he may be questioned about it on the stand.	Extrinsic evidence is not permitted! If the witness denies the misconduct, evidence is not admissible to prove that it occurred.	Required (getting the witness to admit it is the only way to prove the act)
SENSORY DEFICIENCIES	Anything that concerns the witness’s perception or memory (e.g., if the witness is deaf, blind, has a bad memory, etc.) can be used to suggest the witness is mistaken.	Extrinsic evidence is permitted.	Permitted
CONTRADICTION	A witness may be impeached during cross-examination if she made a mistake or lied about anything she said during direct examination.	If the witness won’t admit her mistake, extrinsic evidence may be used as long as the fact at issue is not a collateral (irrelevant) fact.	Required (one must confront the witness prior to offering extrinsic evidence)
REPUTATION OR OPINION FOR TRUTHFULNESS	A party may call its own character witness to testify that the witness in question has a bad reputation for truthfulness or, in the character witness’s opinion, that the witness is not truthful.	The witness is extrinsic evidence.	Permitted

Rehabilitation: evidence of truthful character is admissible only after the witness’s truthfulness is attacked.

CHARACTER EVIDENCE

Character evidence: character evidence is generally *inadmissible* to prove that someone acted in accordance with his character.

- In **civil cases**, it is **only admissible** in cases regarding **negligent entrustment** or hiring, **defamation**, and **child custody**. It can be proven by (ROS) reputation, opinion, and specific acts.
- In **criminal cases**, the defendant must open the door and can use (RO) reputation or opinion evidence. The prosecution can use (ROS) reputation, opinion, and specific acts.

Habit and routine practice: evidence of a person’s or organization’s habit or routine practice may be admitted to prove that it acted in accordance with the habit or routine practice.

MIMIC: A defendant’s prior bad acts may be admissible to prove (MIMIC): motive, intent, lack of mistake, identity, common scheme or plan. **Tip: MIMIC can be used in criminal and civil cases.**

Self-defense cases: A criminal defendant may offer evidence of the victim’s violent character using (RO) reputation or opinion evidence. The prosecution may rebut by introducing (RO) reputation or opinion evidence of the victim’s or defendant’s character.

Prior sexual misconduct of a defendant: If a defendant is accused of a **sexual assault** or child molestation, the court may admit evidence that the defendant committed **any other sexual assault** or child molestation. The evidence may be considered on **any matter to which it’s relevant**, including that he acted in accordance with his character. **Tip: remember that only specific acts can be offered.**

Prior sexual misconduct of a victim

- In a **criminal case**, **specific instances** can be offered to prove the source of **semen**, **injury**, or other physical evidence; **consent**; or when excluding it would violate the defendant’s **constitutional rights**.
- In a **civil case**, evidence is not admissible unless the probative value substantially outweighs the danger of harm or unfair prejudice. The court may admit reputation evidence only if the victim places it in controversy.

WITNESSES

Expert qualification: a witness who is qualified as an expert by knowledge, skill, experience, training, or education may testify if it is **helpful** to the trier of fact and based on **sufficient** facts or data.

Expert bases of testimony: an expert may base an opinion on (1) **personal knowledge**, (2) facts that are **in the record** and made known to the expert by a hypothetical or testimony at trial, or (3) facts not in the record if they are the **kind of facts** other experts would reasonably rely on.

Ultimate issue rule: An expert opinion may embrace an ultimate issue. But, in a criminal case, an expert witness must not state whether the defendant had the requisite mens rea.

Lay witness: A lay witness’s opinion is admissible if it is **rationally** based on the witness’s perception; **helpful** to determining a fact; and **not** based on scientific, technical, or other specialized knowledge. A lay witness must have **personal knowledge**.

Exclusion of witnesses: At a party’s request a court must order a nonparty witness to be excluded. However, a court cannot authorize excluding a **party**, a person whose presence is essential to the claim or defense, or someone authorized to be present.

AUTHENTICATION

Authentication: the proponent must produce evidence **sufficient to support a finding** that the item is what the proponent claims it is.

Handwriting: to authenticate handwriting, one may use (1) a **lay witness** who was familiar with the handwriting **before the litigation**, (2) an **expert witness**, or (3) the **trier of fact** (e.g., the jury may compare the handwriting with an authenticated specimen).

Voice: anyone can authenticate a **voice**—including a lay person—even if the person acquired familiarity with the voice solely for the purpose of litigation.

Photograph: Anyone who has **personal knowledge** of the scene in the photograph may authenticate it. **Tip: the photographer is not necessary to authenticate a photograph!**

PRIVILEGES & POLICY EXCLUSIONS

PRIVILEGES AND WORK PRODUCT

Spousal immunity: (1) it applies in a **criminal trial**, (2) it is held by the **witness spouse**, and (3) the parties must be **married at the time of trial**.

Confidential communications: (1) it applies in a **civil or criminal trial**, (2) it is held by **both spouses**, (3) the **communication was confidential**, and (4) it was made **during the marriage**.

Attorney-client privilege: the privilege applies to **confidential communications between an attorney and client** (or either’s agent) or prospective client **made for the purpose of obtaining legal advice**.

Psychotherapist-patient privilege: confidential communications between a patient and a doctor for the purpose of diagnosis or treatment are protected.

Work-product doctrine: material prepared for litigation may not be discovered absent a showing of a **“substantial need”** and **“undue hardship.”**

POLICY EXCLUSIONS

Insurance coverage is inadmissible to prove negligence but may be used for other purposes (e.g., to show agency, ownership, control, or bias).

Subsequent remedial measures are inadmissible to show negligence or guilt but may be used for impeachment, to show ownership or control, or to show feasibility of precautionary measures if disputed.

An offer to settle a disputed claim and statements made during negotiations are inadmissible.

An offer to pay medical bills is inadmissible to prove liability.

A guilty plea is admissible. But, an offer to plead guilty, a guilty plea later withdrawn, a no contest plea, and statements made during negotiations that did not result in a guilty plea are inadmissible.